

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Caitlin Schwartz	Team: Team # 3	CCRB Case #: 201401284	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Sunday, 02/09/2014 8:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/9/2015	Precinct: 67		
Date/Time CV Reported Mon, 02/10/2014 10:06 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 02/10/2014 10:06 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Kenneth Lechner	25641	950734	067 PCT
2. POM Angel Pimentel	26117	934065	067 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM George Hudson	21988	952865	067 PCT
2. POF Maria Voskoboynik	22535	951406	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Angel Pimentel	Force: PO Angel Pimentel pointed his gun at § 87(2)(b)	A . Alleged Victim Unavailable
B . POM Angel Pimentel	Abuse: PO Angel Pimentel frisked § 87(2)(b)	B . Alleged Victim Unavailable
C . POM Kenneth Lechner	Discourtesy: PO Kenneth Lechner spoke rudely to § 87(2)(b)	C . Unsubstantiated
D . POM Kenneth Lechner	Off. Language: PO Kenneth Lechner made remarks to § 87(2)(b) and § 87(2)(b) based upon the sex of § 87(2)(b)	D . Unsubstantiated

Case Summary

On February 9, 2014, at 7:56 p.m., § 87(2)(b) of § 87(2)(b) in Brooklyn witnessed a possible burglary of the house next door to his, and called 911 to report such. PO Angel Pimentel and PO George Hudson, of the 67th Precinct, arrived on the scene at 8 p.m. After speaking to the suspect, determined to be § 87(2)(b) and checking his identification, the officers determined that he was a repairman working on the building. § 87(2)(b) alleged that PO Pimentel pointed his gun at § 87(2)(b) and subsequently frisked him (**Allegations A and B**), but the investigation was unable to reach § 87(2)(b) to analyze these allegations. At 8:01 p.m., PO Kenneth Lechner and PO Maria Voskoboynik, also of the 67th Precinct, arrived on the scene, and PO Lechner exited their vehicle. § 87(2)(b) PO Pimentel and PO Hudson testified that § 87(2)(b) leaned out of her second floor window and told the officers that § 87(2)(b) worked on the house next door. PO Lechner had no independent recollection of any interaction with § 87(2)(b) but noted in his memo book that a woman was screaming at and berating the officers from her window, and told him that she hoped he died. § 87(2)(b) alleged that after PO Pimentel apprised PO Lechner of the situation, she heard PO Lechner tell PO Pimentel, “That’s why I hate these fucking people. Always fucking calling in stupid shit. Almost fucking killed myself on the way over here for this bullshit. One of the workers, and they’re wasting our fucking time calling in for this stupid shit” (**Allegation C**). When § 87(2)(b) told PO Lechner that she called 911 because she suspected a burglary, PO Lechner allegedly told her, “Shut the fuck up, bitch, shut the fuck up” (**within Allegation C and Allegation D**). § 87(2)(b) responded, “Shut the fuck up, you fucking pig,” and PO Lechner replied, “I hope you fucking get raped tonight” (**within Allegation D**).

Mediation, Civil and Criminal Histories

- As of October 30, 2014, neither § 87(2)(b) nor § 87(2)(b) had filed a notice of claim in regards to this incident.
- § 87(2)(b) opted for an investigation § 87(2)(b)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This complaint is § 87(2)(b)'s second complaint filed with the CCRB. Her first CCRB complaint, § 87(2)(b)
- PO Pimentel has been a member of the NYPD for ten years, and has three prior CCRB complaints against him, involving four allegations, none of which were substantiated (encl. 1A). This complaint is the second CCRB complaint against PO Lechner during his three year tenure. The first complaint involved a physical force allegation that was closed as complainant uncooperative (encl. 1B).

Potential Issues

§ 87(2)(b) and § 87(2)(b) did not know § 87(2)(b)'s name or contact information. His name and address were obtained from PO Pimentel's memo book notation in regards to his stop. § 87(2)(b) was mailed two please call letters at this address, neither of which was returned to the CCRB. A Lexis Nexis search yielded one phone number for § 87(2)(b) but the person that answered at this number informed the investigator that § 87(2)(b) could not be reached there. On January 21, 2015, § 87(2)(b)'s name was

referenced against the New York City Department of Corrections database, and it was determined that he was not incarcerated. § 87(2)(g)

§ 87(2)(b)
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NYPD Documents

- Event Summary § 87(2)(b) indicates that at 7:56 p.m., § 87(2)(b) called 911 and stated that there was a male wearing a black hat, black sweater and black pants climbing through the window of a house in which no one lived, and which seemed to be boarded up. § 87(2)(b) reported that the house appeared to be being worked on, and that the homeowner had asked him earlier to watch the house, which had a danger sign in front of it. At 8:01 p.m., PO Hudson, PO Pimentel, PO Lechner and PO Voskoboynik arrived on the scene in response to the radio run of a burglary in progress—PO Hudson and PO Pimentel arrived approximately 30 seconds prior to the latter partnership. Also at 8:01 p.m., there was male stopped, and at 8:02 p.m., it was determined that the male stopped was working on the house, and it was asked that no further units respond to the scene (encl. 8D-G).
- PO Pimentel's UF250 report regarding his stop of § 87(2)(b) indicated that § 87(2)(b) was stopped at the time and place of occurrence due to suspicion of burglary because he fit a description, was proximal to the scene of the burglary, and changed directions at the sight of the officer. The report indicated that § 87(2)(b) was not arrested, summonsed, frisked or searched (encl. 7B).

Finding and Recommendations

Explanation of Subject Officer Identification

PO Hudson and PO Pimentel were the first officers to arrive on the scene, and PO Pimentel matches § 87(2)(b)'s description of the officer that pointed his gun at and frisked § 87(2)(b). § 87(2)(b) § 87(2)(g)

PO Lechner arrived on the scene after PO Hudson and PO Pimentel, and PO Pimentel apprised him of the situation. He also matches § 87(2)(b)'s description of the officer that spoke rudely to her and made remarks to her based upon sex. § 87(2)(g)

Recommendations

Allegation A—Force: PO Angel Pimentel pointed his gun at § 87(2)(b)

Allegation B—Abuse of Authority: PO Angel Pimentel frisked § 87(2)(b)

§ 87(2)(b) made the abovementioned allegations upon making her complaint. The investigation was unable to reach § 87(2)(b) to obtain his statement, § 87(2)(g)

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§ 87(2)(b)

it is recommended that **Allegations A and B** be closed as **victim unavailable**.

Allegation C—Discourtesy: PO Kenneth Lechner spoke rudely to § 87(2)(b)

Allegation D—Offensive Language: PO Kenneth Lechner made remarks to § 87(2)(b)

§ 87(2)(b) based upon the sex of § 87(2)(b)

§ 87(2)(b) s son, § 87(2)(b) testified that PO Lechner made a comment to another officer along the lines of, “I hate these fucking people...and their bullshit,” and complained of risking his life on the way to the scene. § 87(2)(b) also corroborated that PO Lechner told § 87(2)(b) “I hope you get raped tonight.” § 87(2)(b) said that he was standing with § 87(2)(b) by the second floor window when PO Lechner made these remarks. However, while § 87(2)(b) believed that § 87(2)(b) heard the remarks that PO Lechner made to her, she did not recall whether he was in her bedroom or downstairs. No officer interviewed testified that there was any man visible with § 87(2)(b) when they conversed with her.

§ 87(2)(g)
§ 87(2)(g)

Although PO Lechner could not independently recall the incident, the notation he made in his memo book indicates that he had some sort of dispute with § 87(2)(b). He denied complaining or expressing frustration about having to respond to the scene. He did not become angry at § 87(2)(b) or tell any of the other officers that he wanted her to shut up. PO Pimentel and PO Hudson also denied that PO Lechner complained about the incident. PO Voskoboynik, who did not come out of her vehicle at the scene, denied that PO Lechner complained about the incident upon returning to their vehicle. § 87(2)(g)

§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations C and D** be closed as **unsubstantiated**.

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date